



PROVO CITY CORPORATION
DEVELOPMENT SERVICES DEPARTMENT
Administrative Hearing Agenda
January 21, 2026

NOTICE OF PUBLIC HEARING

A Provo City Planning Commission Administrative Hearing on delegated applications will be held on Wednesday, January 21, 2026, at 5:00 p.m. at the Provo Peak Conference Room, 445 West Center Street, Provo. The items listed below will be discussed, and anyone interested is invited to participate and provide comment. Hearings can be viewed live and on-demand at: YouTube youtube.com/user/ProvoChannel17 and on Facebook facebook.com/provochannel17.

- Item 1 Bruce Mackay requests Project Plan approval to create eight residential units within an existing dental office building in the SC3 (Regional Shopping Center) Zone, located at 2476 N University Pkwy. Carterville Neighborhood. Nancy Robison (801) 852-6417 nrobison@provo.gov PLPPA20250361
- Item 2 WPA Architecture requests Project Plan approval for a new credit union building and drive-thru canopy in the SC3 (Regional Shopping Center) Zone, located at 1218 S University Ave. East Bay Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov PLPPA20250469
- Item 3 Douglas A. Nielson requests Project Plan approval for a new indoor storage facility and retail building in the SSC (Specialty Support Commercial) Zone, located at 3433 North 100 East. Riverside Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLPPA20250338

Prior to the hearing application information may be obtained from and comments may be submitted to the Development Services Department, Suite 200 located at 445 West Center Street, Provo, 7:00 a.m. - 6:00 p.m., Monday - Thursday, or visit provo.gov/pcadminhearing. Decisions may be appealed to the Provo City Board of Adjustment by filing an appeal application within fourteen (14) days following the decision.

To send comments on Planning Commission Administrative Hearing items, email dspublichearings@provo.gov. Please submit public comment emails before 3:00 PM the day of the hearing. Additional information can be found at provo.gov/publiccomments.

Provo City will make reasonable accommodations for all citizens interested in participating in this meeting. If assistance is needed to allow participation at this meeting, please call the Development Services Department at (801) 852-6400 before 12:00 p.m. the day before the meeting to make arrangements.

By order of the Provo City Planning Commission
Planning Secretary, (801) 852-6424



ITEM 1 Bruce Mackay requests Project Plan approval to create eight residential units within an existing dental office building in the SC3 (Regional Shopping Center) Zone, located at 2476 N University Pkwy. Carterville Neighborhood. Nancy Robison (801) 852-6417 nrobison@provo.gov PLPPA20250361

Applicant: RLR LC UTAH LIMITED
LIABILITY COMPANY Bruce Mackay

Staff Coordinator: Nancy Robison

Property Owner: RLR LC UTAH LIMITED
LIABILITY COMPANY

Parcel ID#:19:001:0157

Acreage:1.03

Number of Properties: 1

Number of Lots: 1

ALTERNATIVE ACTIONS

1. **Continue** to a future date to obtain additional information or to further consider information presented.
The next available meeting date is February 4, 2026 5:00 P.M.
2. **Deny** the requested project plan.
This action would not be consistent with the recommendations of the Staff Report. The Administrative Planning Commission should state new findings.

Current Legal Use: Regional Shopping Center Zone. (SC3)

Relevant History: The building on the property was built in 1995. It has been used as a dental office since that time.

Neighborhood Issues: No known issues at the time of this report.

Summary of Key Issues:

- The current building is two floors with a basement.
- The upstairs and part of the basement are being remodeled to create residential apartments.
- Six, one-bedroom apartments.
- Two, two-bedroom apartments.
- The parking lot currently has 81 parking spaces.
- The required parking is 71.

Staff Recommendation:

Staff **recommend approval** of the current project plan.

OVERVIEW

The subject property is located within the Regional Shopping Center (SC3) Zone, which permits mixed-use development consisting of both residential and commercial uses. The current surrounding properties also have mixed-use buildings. The existing building was constructed in 1995 and consists of a basement level and two above-grade floors. The structure has continuously operated as a dental office since its original construction. The property owners propose to convert currently unused interior space within the building to residential use, while maintaining the existing commercial operation. The proposal includes the creation of six one-bedroom dwelling units and two two-bedroom dwelling units. Based on the applicable mixed-use parking standards, a total of 71 parking spaces are required. The site currently provides 81 off-street parking spaces, which exceeds the minimum parking requirement. Accordingly, the proposed mixed-use conversion can be accommodated without modification to existing parking facilities.

FINDINGS OF FACT

- The property is zoned for Regional Shopping Center Zone (SC3).
- Mixed use of residential and commercial in this zone is permitted.
- The building was built in 1995 has a basement and two floors.
- It has been used as a dentist office since that time.
- The property owners have unused space they want to turn into residential units.
- There will be six one-bedroom units and two two-bedroom units.
- The required parking for the mixed use is 71 spaces.
- The number of current parking spaces is 81.

CONCLUSIONS

Staff recommend approval of the proposed project plan.

ATTACHMENTS

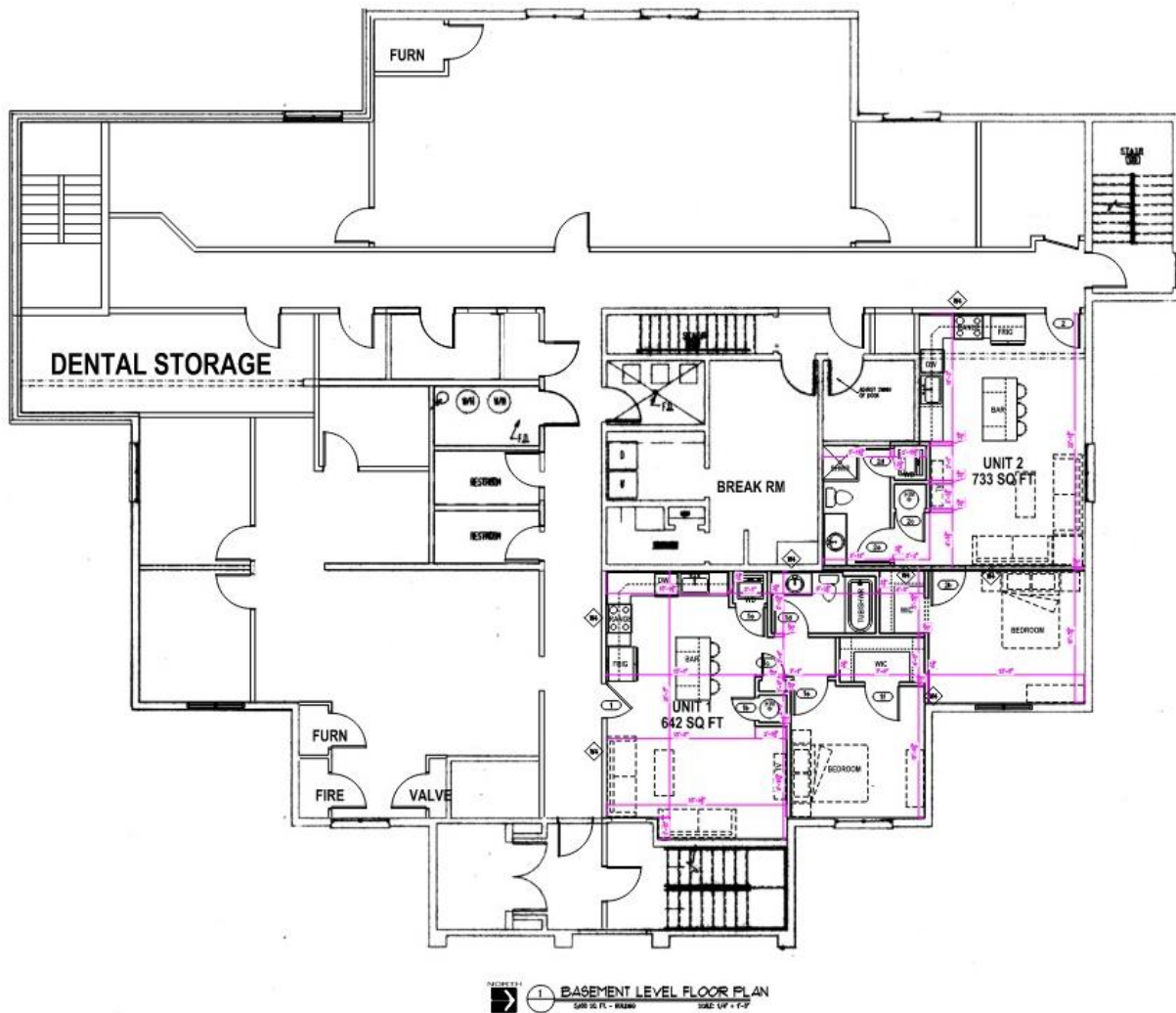
1. Site plan
2. Current Elevations
3. Floor Plans

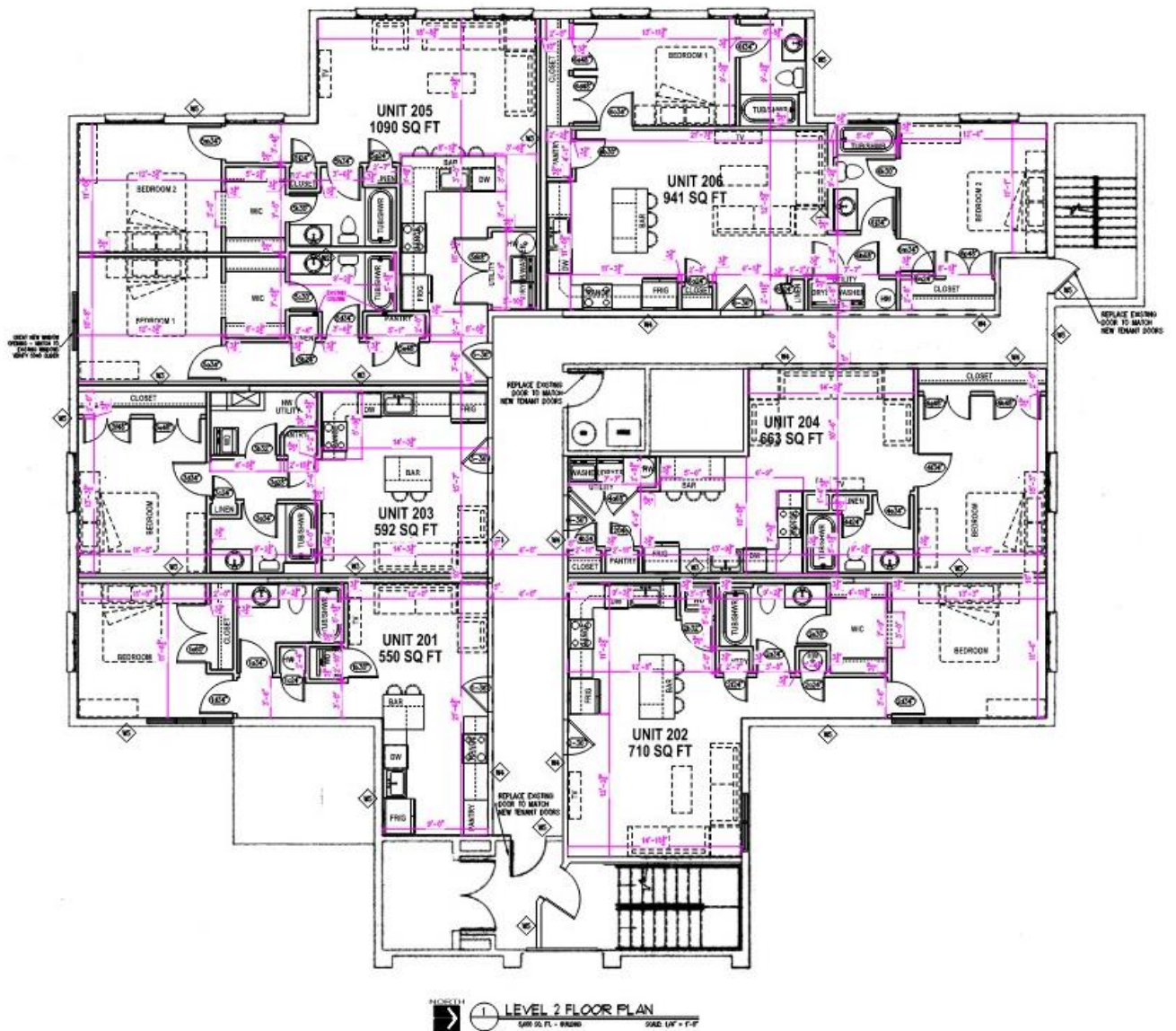
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ATTACHMENT 2 – CURRENT ELEVATIONS



ATTACHMENT 3 – FLOOR PLANS





Administrative Hearing Staff Report Hearing Date: January 21, 2026

ITEM 2 WPA Architecture requests Project Plan approval for a new credit union building and drive-thru canopy in the SC3 (Regional Shopping Center) Zone, located at 1218 S University Ave. East Bay Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov
PLPPA20250469

Applicant: WPA Architecture

Staff Coordinator: Dustin Wright

Property Owner: Utah Community
Federal Credit Union

Parcel ID#: 21:054:0042; 21:054:0042

Acreage: 0.644

Zone: SC3 – Regional Shopping
Center

Current Legal Use:

Gasoline Service Station

Relevant History:

There was a former Exxon gas station at this location that is no longer in operation. UCCU is the current owner of the property.

Neighborhood Issues:

There are no neighborhood issues. Credit unions are permitted uses in the SC3 zone.

Summary of Key Issues:

1. The plans have received CRC approval, meeting all relevant codes and standards.
2. All existing structures, including the building, canopy, gas pumps, car wash, and underground tanks will be demolished and removed prior to construction.

ALTERNATIVE ACTIONS

1. **Continue** to a future date to obtain additional information or to further consider information presented.
The next available meeting date is February 4, 2026, 5:00 P.M.
2. **Deny** the requested Project Plan.
This action would not be consistent with the recommendations of the Staff Report. The Administrative Hearing Officer should state new findings.

Staff Recommendation:

Staff **recommend approval** of the proposed Project Plan with the following conditions:

1. All existing structures, including the building, canopy, gas pumps, car wash, and underground tanks will be demolished and removed prior to a building permit being issued.

BACKGROUND

This proposal is to construct a single-story (2,923 sq. ft.) credit union building on a 0.644-acre site. There are existing structures from a former gas station, including two canopies for existing gas pumps, a car wash, and underground tanks, which will all be removed. A new drive-thru canopy with two lanes and automatic teller machines will be added to the south end of the property.

The property is surrounded by SC3 zoning on all sides and therefore will not have a more intense use than any of the adjacent properties.

FINDINGS OF FACT

1. The current zone is SC3 (PCC 14.20)
2. The minimum parking required is 12 stalls.
3. 15 parking stalls will be provided, including 1 required ADA stall.
4. The two drive-through lanes will meet the requirement of 3 stacking spaces.
5. Plans meet the landscaping requirements in PCC 15.20.

STAFF ANALYSIS

The proposed development will have a positive economic impact in the area and will be compatible with the surrounding area. The proposed use of the property is permitted in the SC3 zone.

CONCLUSIONS

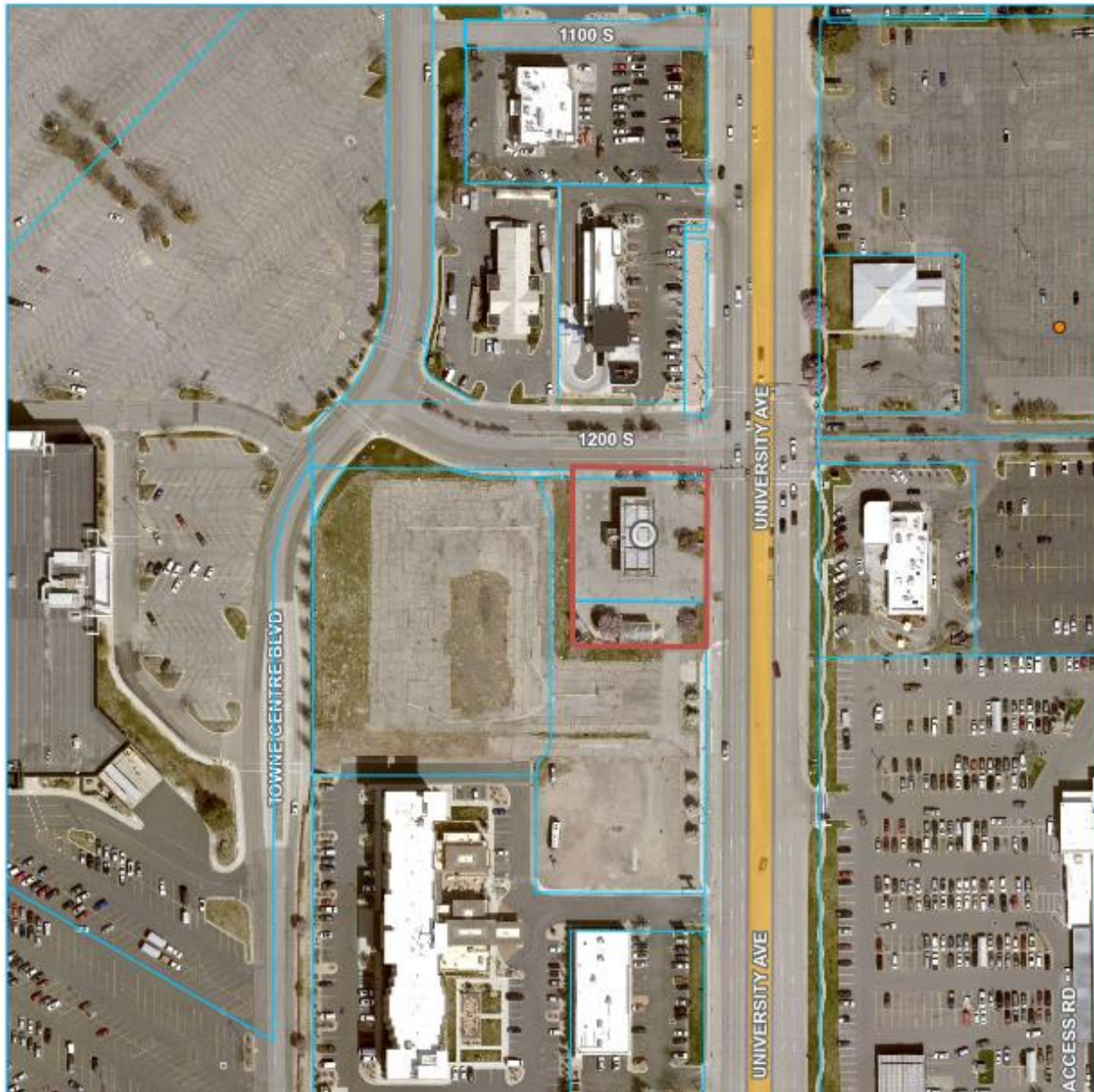
Staff have reviewed the proposed project and found that it meets all city codes. Staff is supportive of the proposed development on this site and sees that it will bring needed development to this area to better meet the daily needs of the residents in this region.

ATTACHMENTS

1. Area Map
2. Written Description from the Applicant
3. Site Plan
4. Building Elevations
5. Drive-Thru Canopy Renderings
6. Landscape Plan

ATTACHMENT 1 – AREA MAP

UCCU University Avenue Office 1218 S University



ATTACHMENT 2 – WRITTEN DESCRIPTION FROM THE APPLICANT

M E M O R A N D U M



wpa-architecture.com

Date: 25 August 2025

To: Provo City
445 West Center Street
Provo, Utah 84601
801.852.6000

From: Bruce T. Fallon, AIA, LEED® AP

Project: UCCU University Avenue Office

Project Narrative:

The proposed project is to construct a 2,923 sq. ft., single-story credit union building on an existing 0.644-acre site. A drive-thru canopy, located at the south end of the property will include two lanes with Interactive Teller Machines (ITM), and an escape lane. The existing site consists of a gas station with two canopies providing protection for existing gas pumps. An existing car wash is located at the south end of the property. The existing structures, including the underground tanks, will be demolished.

Project Tabulation:

DATA TABLE

TOTAL ACREAGE=0.65

ACREAGE OF BUILDING=0.11

ACREAGE IN ROW=0

ACREAGE OF OPEN SPACE/LANDSCAPING=0.19

ACREAGE OF IMPERVIOUS AREA=0.46

ZONING=SC3

PARKING TABLE

BUILDING SQUARE FOOTAGE=2,907

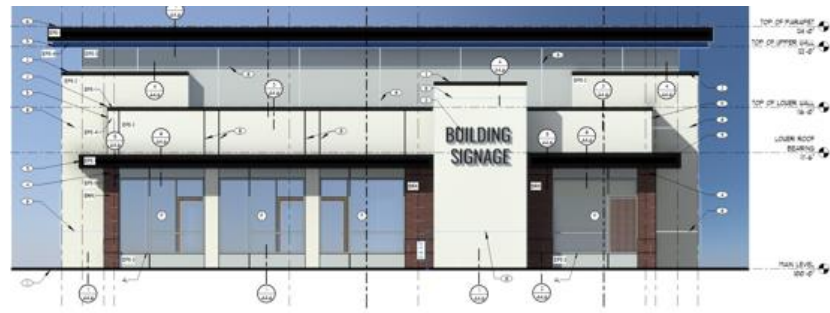
PARKING REQ'D=1 STALL/250 SF=12 STALLS

PARKING PROVIDED=15 STALLS

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ATTACHMENT 4 – BUILDING ELEVATIONS





1 NORTH ELEVATION
10'-0"



2 EAST ELEVATION
10'-0"

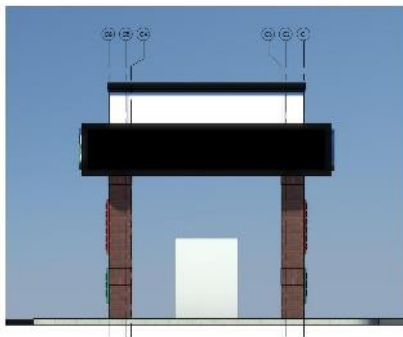


1 SOUTH ELEVATION
10'-0"



2 WEST ELEVATION
10'-0"

ATTACHMENT 5 – DRIVE-THRU CANOPY RENDERINGS



① DRIVE UP NORTH ELEVATION
1/2" = 4'



② DRIVE UP EAST ELEVATION
1/2" = 4'

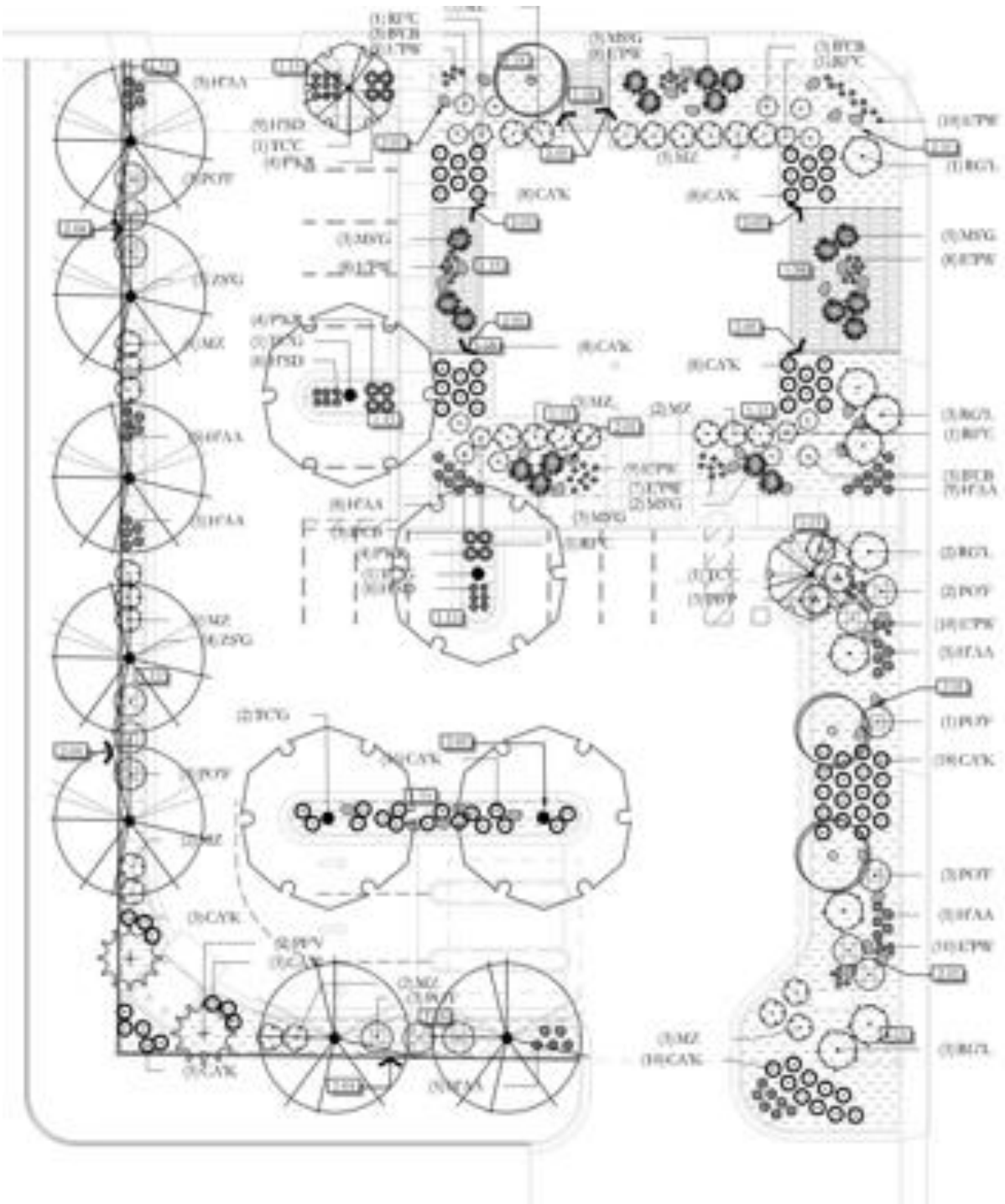


③ DRIVE UP SOUTH ELEVATION
1/2" = 4'



④ DRIVE UP WEST ELEVATION
1/2" = 4'

ATTACHMENT 6 – LANDSCAPE PLAN



ITEM 3 Douglas A. Nielson requests Project Plan approval for a new indoor storage facility and retail building in the SSC (Specialty Support Commercial) Zone, located at 3433 North 100 East. Riverside Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLPPA20250338

Applicant: Douglas A. Nielson

Staff Coordinator: Aaron Ardmore

Property Owner: UNIVERSITY AVENUE
3470, LC (Douglas A. Nielson)

Parcel ID#: 20:030:0186

Acreage: 2.59

Number of Lots: 2 (in process)

Current Legal Use: The property is currently vacant.

Relevant History: This property has remained vacant as development has occurred around it. The applicant successfully rezoned this portion of the property last year. There is also a final subdivision in process with staff to split the proposed retail building from the storage facility, with anticipated approval this month.

Neighborhood Issues: This was presented in concept with the rezone to District 1 on April 16, 2025, with strong support, but some questions and concerns about traffic and access (minutes attached).

Summary of Key Issues:

- The proposed project meets the standards for the SSC zone and is consistent with the concept shown at the time of the rezone.
- This project has received CRC (Coordinator Review Committee) approval, verifying access and traffic issues stemming from this project will not create any additional risk or burden to the area.
- A subdivision plat being processed will need to be recorded prior to building permits.
- The project will provide 5,823 sq. ft. of retail space and a two-story indoor storage facility.

Staff Recommendation: Staff **recommend approval** of the proposed project plan, with a condition that the final subdivision is approved and recorded prior to building permit approval.

ALTERNATIVE ACTIONS

1. **Continue** to a future date to obtain additional information or to further consider information presented.
The next available meeting date is February 4, 2026, 5:00 P.M.
2. **Deny** the requested project plan.
This action would not be consistent with the recommendations of the Staff Report. The Administrative Hearing Officer should state new findings.

OVERVIEW

Douglas A. Nielson is requesting approval to develop 2.59 acres of property he owns at 3433 North 100 East to provide new retail spaces and an indoor storage facility. These are both permitted uses in the SSC Zone, which was placed on this property in 2025 in preparation for this project.

Mr. Nielson developed the other retail spaces south of this parcel and will adopt the same style for this new development as well as allow cross access from the property to the south to the new buildings.

The new retail buildings, totaling 5,823 square feet, are designed to allow drive-thru services and are shown as three retail spaces within one building on the north end of the property. The parking requirement for retail uses of this size of building is 26 stalls, which has been met on the site plan. The storage building requires six spaces, but the site plan provides an additional twelve stalls on that lot. With the proposed shared access and parking easement on the plat, these uses would provide more than sufficient off-street parking to meet the requirements of Provo City Code 14.37.

The property is also within the North University Avenue Design Corridor, requiring a larger setback and enhanced landscaping to help the visual appeal of the site. The design corridor also pushes the loading and unloading area for the storage building to the rear of the lot, but the applicant has also enhanced the look of this area with landscaping and classic architecture.

This proposal is very similar to the original concept shown to the neighborhood and the City Council during the rezone phase and will respect the character of the area, while providing additional retail opportunities. The parking and access easement will provide a seamless addition to the retail already established south of this site.

FINDINGS OF FACT

1. The project area is entirely within the SSC Zone (PCC 14.47)
2. The proposed uses are permitted in the SSC Zone.
3. The required parking for the project is 30 stalls (PCC 14.37.060)
4. The parking provided for the project is 44 stalls.

CONCLUSIONS

Staff are in favor of this development and have found it to meet all applicable codes. We anticipate the approval of this project plan to be of benefit to the area but require that the subdivision plat be recorded prior to the approval of any building permits for this project.

ATTACHMENTS

1. Area Map
2. Site/Landscape Plan
3. Elevations
4. Proposed Subdivision Plat
5. Neighborhood Meeting Minutes

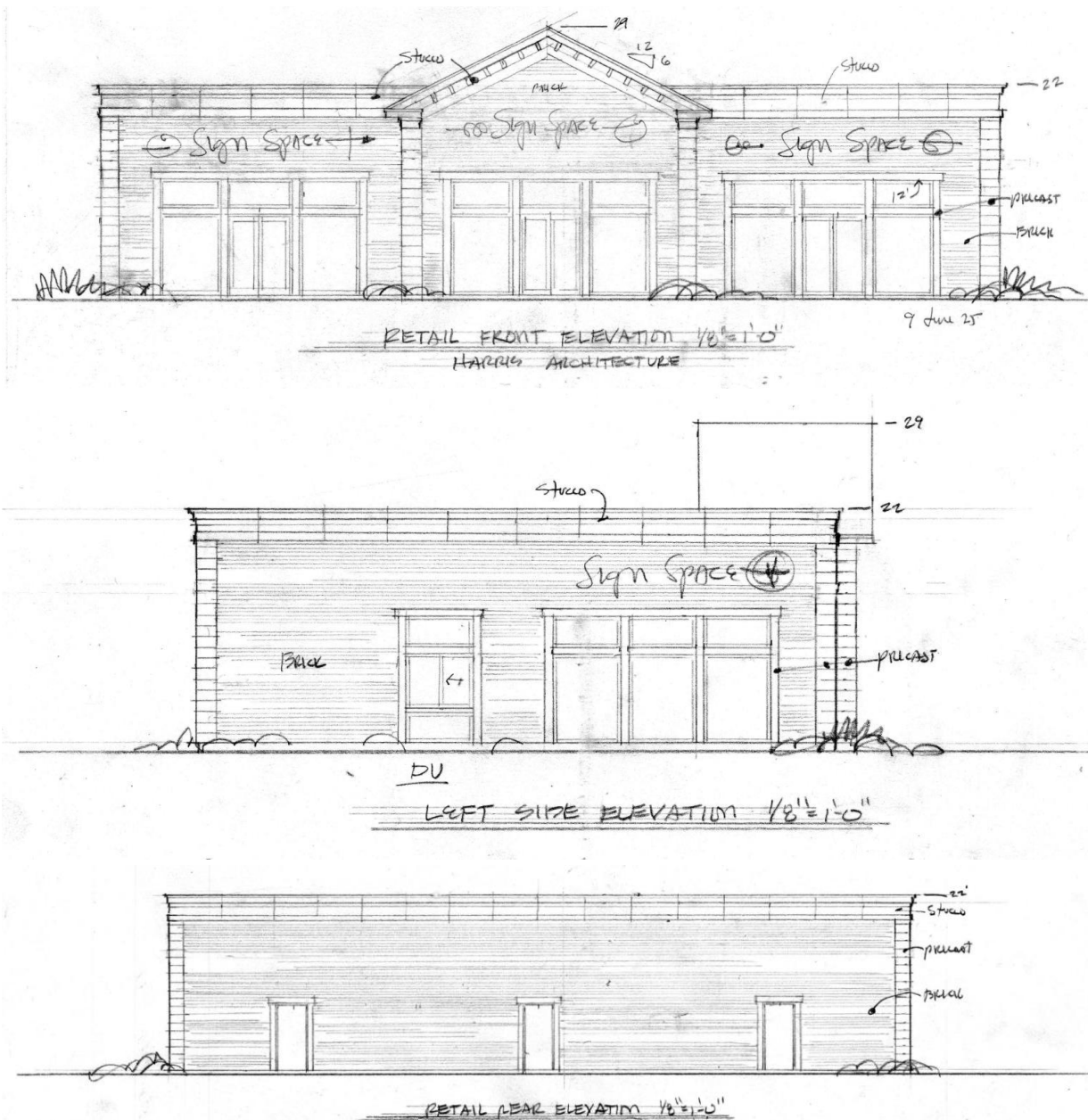
ATTACHMENT 1 – AREA MAP



ATTACHMENT 2 – SITE/LANDSCAPE PLAN

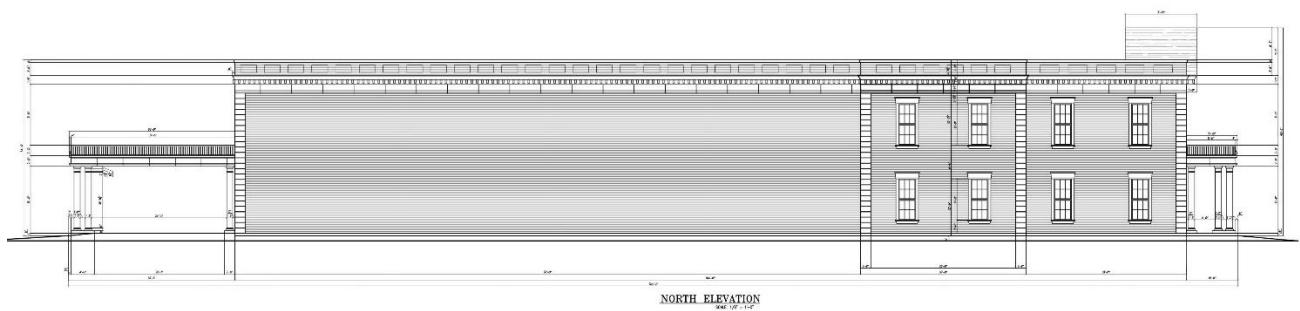
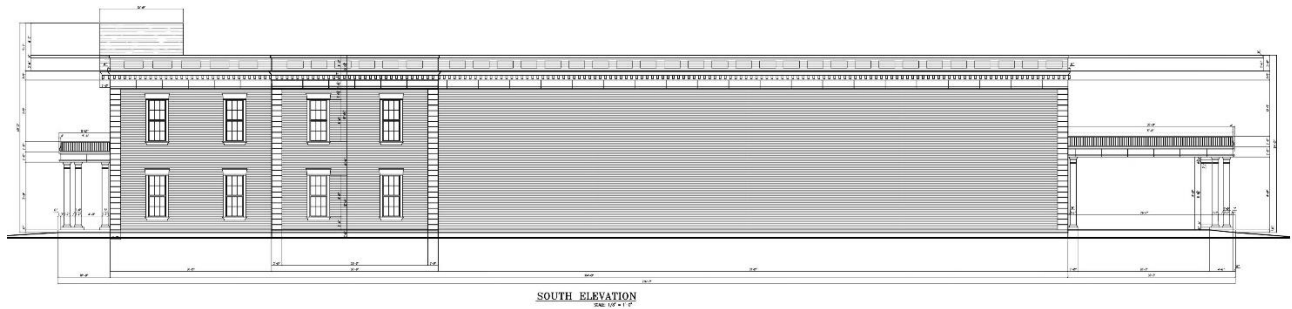
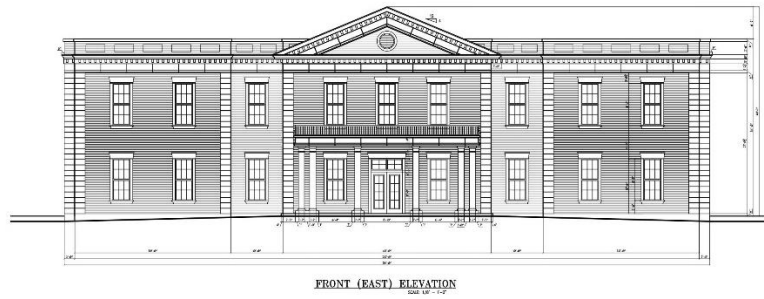


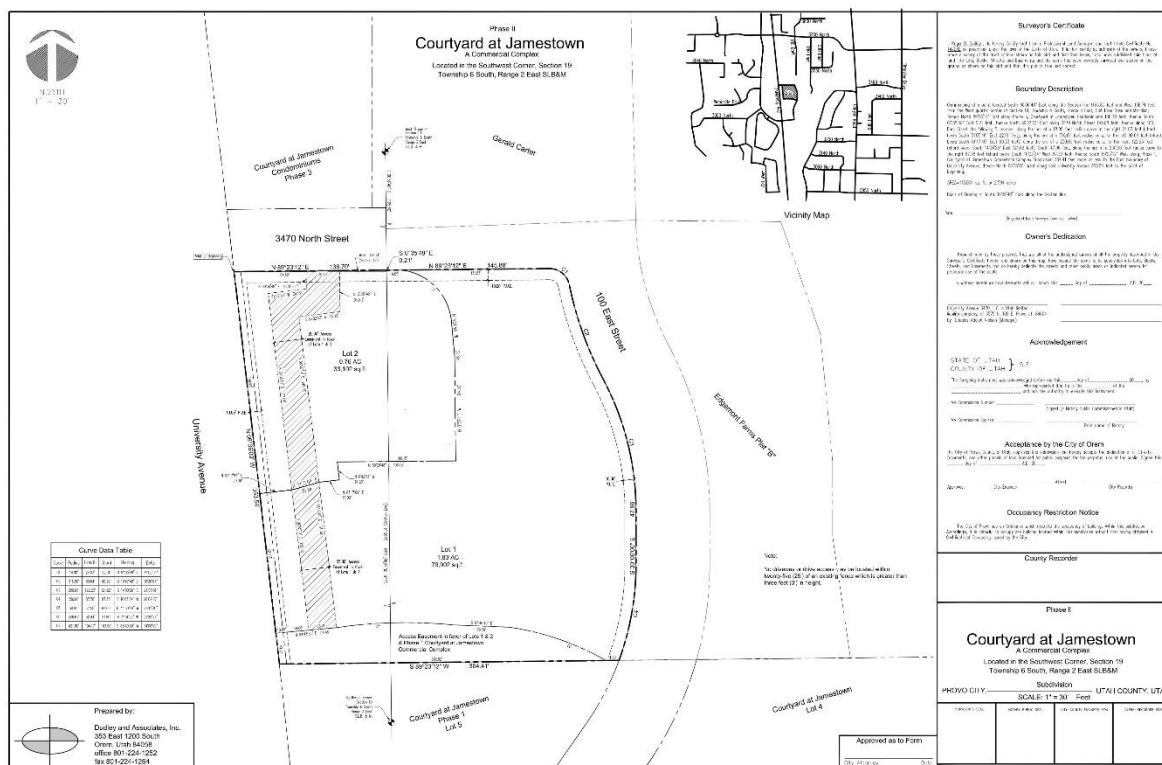
ATTACHMENT 3 – ELEVATIONS



Retail Elevations

Storage Elevations





ATTACHMENT 5 – NEIGHBORHOOD MEETING MINUTES

PLRZ20250082 & PLOTA20250083 - Proposed Zone change from PO to LDR and SSC to develop a 2.35-acre mixed-use development with six townhomes, a retail center, and an indoor self-storage facility at 3433 N 100 E in the Riverside Neighborhood

City Planner Mary Barnes presented the proposed zone change and ordinance text amendment for a 2.35-acre mixed-use development at 3433 N 100 E. The project would include retail units, an indoor storage facility, and six townhomes. The developer, Douglas Nielsen, was present to answer questions.

Residents asked about traffic impacts, design requirements, and potential changes to the concept plan. Residents who live near the property were concerned about additional traffic and wanted right-turns-only out of the property. Board members were concerned about the property being sold and the new owner would not follow the design standards. Mary and Douglas clarified that detailed traffic studies would be conducted if the rezone was approved. They emphasized that the current applications going before the City Council were only on the zone change and text amendment, not the final project design.

The District 1 Board conducted an opinion poll of District 1 residents present:

- *In favor of the zone change from PO to LDR and SSC: 25*
- *Against the zone change from PO to LDR and SSC: 1*

- *In favor of the text amendment allowing storage units, drive-throughs, and 34% lot coverage in the SSC zone: 19*
- *Against the text amendment allowing storage units, drive-throughs, and 34% lot coverage in the SSC zone: 0*

Link to Staff Reports (Items #5,6,7): [03262025-231](#)